

1. The real property must be appraised by the probate referee, not the petitioner.
2. Petition, item 9.a: Either (7) or (8) must be checked.
3. Petition, item 13: The petitioner shall explain why he should receive 100% of the real property when he has a brother who is entitled to 50% under Probate Code section 6402(a).
4. Petition, item 14: The predeceased spouse's name and date of death must be provided. (Solano County Local Rules, Rule 7.51(b).)
5. There is no Proof of Service on file showing all those entitled to notice have received it per Probate Code section 13153.

LINE

12

**IN RE THE ESTATE OF HELEN STEWART, DECEASED
PR26-00078**

Petition for Probate of Lost Will and for Letters of Administration and Authorization to Administer Under the Independent Administration of Estates Act (filed by James Stewart)

Objection to Petition for Probate (filed by Anna Stewart)

Reply to Objection to Petition for Probate

Petition for Probate of Lost Will and for Letters of Administration and Authorization to Administer Under the Independent Administration of Estates Act (filed by Anna Stewart)

PREGRANT ORDER

This matter was continued from March 30, 2026 to allow the parties to address issues with their pleadings. The court has reviewed the Response filed by the petitioner which did not resolve all of the issues with the petition, and the competing petition filed by the objector which has issues.

The court on its own motion continues this hearing to July 1, 2026, at 9:30 a.m. in Department 22. Pending the continued hearing, the parties shall resolve the following issues as it relates to their pleadings:

As to the Petition filed by James Stewart:

Petition, item 8: The decedent's post-deceased spouse is a beneficiary of the estate and the decedent's trust is the residual beneficiary. However, the information for the personal representative of the Estate of Donald E. Stewart was not provided.

As to the Objection filed by Anna Stewart:

All issues resolved.

As to the Reply filed by James Stewart:

All issues resolved.

As to the Petition filed by Anna Stewart:

1. There is no Proof of Service on file showing all those entitled to notice have received it per Probate Code section 8110.
2. There is no completed Duties and Liabilities of Personal Representative form on file (Prob. Code § 8404).
3. Notice of Petition to Administer Estate, items 4 and 5: The petition seeks admittance of the will and full authority. These boxes must be marked to give correct notice to all interested parties, heirs, and creditors.
4. Proof of Publication: The proof does not state that the petitioner seeks admittance of the will and full authority under the IAEA. Re-publication is required to give correct notice of the relief sought.

LINE

13

IN RE THE ESTATE OF QUINTIN CORTES, DECEASED
PR26-00202

Petition for Letters of Administration and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition as supplemented is granted as prayed.

The court appoints Christopher Ryan Cortes as administrator with full authority under the Independent Administration of Estates Act.

Bond is waived.

The court appoints Paul Miller as probate referee.

The personal representative shall file their Inventory and Appraisal within four months of the date letters are issued. **A compliance hearing regarding the filing of the Inventory**